

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 24, 2026
8:30 AM/1:30 PM

10. JEFFREY NICHOLSON V. LUCIA NICHOLSON

PFL20210381

Petitioner filed a Request for Order (RFO) on June 29, 2026, seeking bifurcation of marital status. Respondent was mail served on June 30, 2026.

Petitioner filed an amended RFO on July 20, 2026. Respondent was mail served on July 23, 2026.

Respondent has not filed a Responsive Declaration to Request for Order, therefore, the court deems the failure to do so as an admission that Petitioner's moving papers have merit. See El Dorado County, Local Rule 7.10.02(C).

Regarding the request for bifurcation, a party may request bifurcation of the issue of marital status, however prior to doing so the party must ensure that "[a]ll pension plans that have not been divided by court order that require joinder ..." have been joined. Cal. Rule Ct. 5.390(d)(1). A party seeking bifurcation is to submit a completed FL-315. Cal. Rule Ct. 5.390(a).

Here, Petitioner has filed the requisite paperwork and it appears all retirement plans have been joined. Accordingly, the court finds good cause to bifurcate the case and grant a separate trial on the issue of marital status only. The court orders parties to appear for the hearing on this issue.

TENTATIVE RULING #10: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.

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11. SCOTT RONNINGEN V. ANGELINA RONNINGEN

23FL0127

On November 13, 2025, Respondent filed a Request for Order (RFO) seeking sanctions and further sentencing for Petitioner's noncompliance with court orders. The RFO was served by mail on January 13, 2026. It appears the Notice of Posting Tentative Ruling was not served with the RFO.

The parties appeared for the hearing on February 26, 2026 at which time the court found improper service of the RFO. Because the RFO deals with failure to comply with an Order to Show Cause (OSC), the RFO must be personally served as would an OSC. The court granted Respondent's request to continue to allow for proper service.

The RFO and the February 26th Minute Order were personally served on Petitioner on March 24, 2026.

Petitioner has not filed a Responsive Declaration to Request for Order.

Respondent is seeking the following: (1) Petitioner to be found in noncompliance with his sentence issued at the March 12, 2025 hearing; (2) Petitioner to be found in violation of his probation; (3) further sentencing; and (4) Family Code § 271 sanctions. Of note, Respondent seems to be referencing Petitioner as "Respondent" in her moving papers.

Respondent and her counsel appeared for the hearing on May 21, 2026. Petitioner failed to appear. The court found good cause to proceed in his absence and continued the matter to July 30, 2026 at 1:30 PM. The court issued a bench warrant for Petitioner, however, stayed the warrant pending the next hearing. The court reserved on Respondent's request for attorney's fees and sanctions.

All parties appeared for the hearing on July 30, 2026. The court advised Petitioner of his rights and appointed the Office of the Public Defender on his behalf. The court recalled the bench warrant and continued the matter for further arraignment. The court continued to reserve on Respondent's request for attorney's fees and sanctions.

The parties are ordered to appear for the hearing.

TENTATIVE RULING #11: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.